School District of Philadelphia Generative AI Guidelines: Data and Student Privacy Passages

Excerpted verbatim from *Generative Artificial Intelligence Guidelines in the School District of Philadelphia (Google Doc linked from the district's AI Resources page)*. Page numbers match the document's own page numbering. Ellipses (…) mark omitted text. The staff and student sections repeat the approved-tool vendor paragraph; it is included once for each audience. Sub-bullets are shown as ordinary bullets.

Artificial Intelligence in Education: An Overview (excerpt)

Source: page 3

AI also carries risks related to data privacy, bias, academic integrity, cybersecurity, mis- and disinformation, and over-reliance – potentially at the expense of essential human skills.

Guiding Principles: Privacy and Data Protection

Source: page 4

Student and staff data will be protected in conformity with applicable laws and policies. Personally identifiable information will not be shared with GenAI systems unless it conforms with applicable laws and regulations.

Guidelines for Educators and Staff: Approved Tools and Vendor Privacy Terms

Source: page 5

Google Gemini and Adobe Express with Firefly were selected because they meet needed cybersecurity and privacy requirements and each vendor has an executed contract with the School District. Each provider has agreed to the District's privacy terms that the data input into and generated by these tools will be housed exclusively in the United States, that data will not be sold or shared without permission to third parties, and that data input into these tools will not be used to train their AI models:

Guidelines for Educators and Staff: Safety and Security of Student Data (excerpt)

Source: page 7

The District prioritizes the safety and security of student data, alignment with curriculum standards, and safe, responsible, and ethical use of GenAI tools. Therefore, educators and staff are only permitted to use the GenAI tools that the District has approved.

Guidelines for Educators and Staff: Privacy and Data Protection

Source: page 8

- Never share personal staff, student, or family information with GenAI tools. This includes, but is not limited to those elements listed in Policy 216 Student Records such as:
- name, address, or phone number
- social security number, student number, or biometric record
- indirect identifiers such as date of birth, place of birth, and mother's maiden name
- other information that, alone or in combination, is linked or linkable to a student, that could be used to identify you with reasonable certainty
- Information entered into GenAI tools can be used by the companies that created them. Therefore, do not enter personal or identifiable information into these tools and be selective about what you choose to enter.
- Student work should not be uploaded for grading or other purposes, even if it has been de-identified. This does not apply if student work is created within an edtech tool as part of the tool itself, has been approved for student use, and grades student work within the tool. The distinction is that teachers may not upload student work.
- It is required that staff only use the approved GenAI tools that have been vetted to support transparency around data collection, informed consent, and the prioritization of privacy and security.

Guidelines for Educators and Staff: Generative Artificial Intelligence Tools

Source: page 8

- Only approved GenAI tools should be used on the district network, with district accounts, or when doing any district work.
- GenAI tools must be submitted and vetted in accordance with the existing Digital Access Request process. Different tools may be approved for use by educators and staff than for students, depending on a variety of factors.

Appendix: Federal Regulations Most Relevant to AI in Education (excerpt)

Source: pages 10–11

- FERPA - AI systems must protect the privacy of student education records and comply with parental consent requirements. Data must remain within the direct control of the educational institution.
- COPPA - AI tools (generative AI, chatbots, tutoring tools, etc.), personalized learning

platforms, and other technologies collecting personal information and user data on children under 13 must require parental consent or have a signed contract ensuring data privacy.

- CIPA - Schools must ensure AI content filters align with CIPA protections against harmful content.

Guidelines for Students: Approved Tools and Vendor Privacy Terms

Source: page 12

Students are only permitted to use the GenAI tools approved by the District for their grade level.

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Guidelines for Students: Privacy and Data Protection

Source: pages 13–14

- Never share personal information with GenAI tools. This includes, but is not limited to:
- names, the names of parents or family members, address, or phone number
- social security number, student number, or biometric record
- indirect identifiers such as date of birth, place of birth, and mother's maiden name
- other information that, alone or in combination, is linked or linkable to a person and could be used to identify them with reasonable certainty
- Remember that the information you enter into GenAI tools can be used by the companies that created them. Therefore, be selective about the information you enter.

Frequently Asked Questions: Outside-of-School Tool Use (excerpt)

Source: page 17

Age restrictions: Many generative AI tools have age restrictions. Students under the age of 13 are not allowed to use generative AI tools. Google Gemini and Microsoft Copilot require users to be at least 13 years of age and Open AI's ChatGPT requires parental permission for 13-18 year old users.

Data Privacy and Security: Many AI tools collect user data such as location, IP address, etc. and share data with third parties. Always review the privacy guidelines, terms of service, and end user agreements. Remind your child that they should not enter personal or sensitive information into AI tools.